

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Sealed Highlighted Opening Brief of Open Grid Archive

Filed: March 13, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Controlled status:** Fictional semantic-placement counterpart; no authentic operational information

Requested Disposition

This controlled counterpart asks the Court to preserve the narrow ruling supported by DOE’s evidence and return three broader rulings for lawful reconsideration. The agency adequately connected certain nonpublic relationships inside its fictional decision trees to Exemption 7(E). Its declarations did not comparably justify a category-wide application of 7(F), establish that every remaining passage was inseparable, or support restricting whole judicial submissions without findings addressed to each document.

The harmless labels visible here have no value outside this exercise. They do not encode a system setting, instruction, identity, location, sequence, or usable protective method. Their only purpose is to let the panel compare the semantic position of a field with the parties’ public descriptions.

Open Grid accordingly seeks affirmance for the described operational core, vacatur of the safety, segregability, and district-sealing determinations, and remand of those three subjects. The Court can grant that relief without directing publication of any matter sustained under 7(E) and without converting this controlled copy into a source of technical information.

Appellate Authority and Review

Final judgment ended the district-court action on January 2, 2026. The notice of appeal followed on February 2, and the record was transmitted on February 9. Jurisdiction therefore lies under 28 U.S.C. § 1291. Nothing remained for the district court to decide on the parties' FOIA claims when the appeal was docketed.

This Court reviews the exemption determinations and summary-judgment record without deference to the district court's legal conclusions. DOE retains the burden to place each withholding within the statute through declarations, indexes, and admissible record material sufficiently concrete to permit review. Controlled examination may aid that inquiry, but the mere availability of a controlled copy cannot repair an explanation that is absent from the agency record.

The segregability question requires its own assessment under FOIA's release command. Restrictions on judicial records require a second, doctrinally distinct inquiry under *Company Doe v. Public Citizen*. A finding that agency information may be withheld does not by itself establish that an entire filed brief or exhibit must be inaccessible. Open Grid accepts the four-document interim order sought on appeal while preserving its objection to restrictions unsupported by individualized findings.

Request, Processing, and Record Totals

Request DOE-FOIA-2024-OG-041 sought final and replaced editions of fictional Grid Sentinel materials. ACK-OG-0610 and CLR-OG-0621 recorded acknowledgment and clarification. The narrowed request omitted drafts, routine messages, authentic incidents, configurations, credentials, personal contact data, and other real technical material. RLS-OG-001, DOE-APR-2024-OG-017, and FAD-OG-1007 completed the initial administrative sequence.

SRCH-OG-2025-0804 reports 16,842 initial hits, 1,284 items after deduplication, forty-six files examined by custodians, and twelve responsive records containing 200 source pages. The four families comprise sixty decision-tree pages, fifty-four escalation-matrix pages, sixty-four coordination-appendix pages, and twenty-two governance pages.

DOE withheld three records and fifty-four pages completely, partly produced seven records and 124 pages, and released two records and twenty-two pages in full. Of 146 produced images, sixty-eight were unredacted and seventy-eight contained redaction. Sixty-two redacted images invoked 7(E), fifty-one invoked 7(F), and thirty-five invoked both. All fifty-four pages withheld in full invoked 7(E); thirty-nine of those also invoked 7(F).

Collection Purpose Does Not Determine Every Field

For this appeal, Open Grid accepts the adequacy of the search and the qualifying law-enforcement purpose asserted for the responsive operational materials. Those matters narrow the dispute. They do not collapse the remaining statutory questions into a single conclusion based on the collection's overall subject.

The controlled excerpts show why. A decision framework may contain an abstract operational relationship beside neutral version information. An escalation document may combine a field carrying protective significance with a conventional approval line. The law-enforcement character of the first does not silently extend to the second. Each retained deletion still requires a statutory ground and an explanation of the protected interest.

The inert words in this brief make positions visible without revealing content. Condition-Aster denotes only the place of a fictional decision condition; Sequence-Beryl denotes only the place of a fictional ordering relationship; Value-Cinder denotes only a fictional escalation field. None communicates what to do, when to act, or how any system functions. The Court may therefore assess classification and context without learning a mechanism that could be used beyond the record.

The Supported Seven(E) Relationship

Within the operational decision-tree samples, Condition-Aster occupies the triggering position and Sequence-Beryl occupies the ordered-response position. Value-Cinder appears as an abstract escalation field. DOE's public and controlled explanations establish that exposing the relationship among those positions, together with the withheld implementation prose, would disclose the organization of a nonpublic protective framework.

That showing fits Exemption 7(E). It concerns a qualifying technique or procedure, or a guideline for which the agency reasonably described a circumvention risk. Open Grid does not seek the underlying values, their logical connection, or the implementing detail. The labels themselves are inert substitutes and are not offered as genuine government information.

Grey v. Alfonso-Royals protects nonpublic implementation detail, and Zaid v. Department of Justice permits functional categories grounded in document-by-document review. Applying those principles here, the Court should affirm the redactions where DOE tied Condition-Aster, Sequence-Beryl, and Value-Cinder to the nonpublic decision-tree design. The affirmance should be expressly confined to those trigger, order, escalation, and implementation relationships, leaving surrounding administrative text for separate analysis.

Administrative Matter Requires Its Own Analysis

Several redactions extend beyond the decision framework DOE described. They cover publication ownership, supersession entries, generic captions, and explanations that remain intelligible after the operational labels are removed. The controlled placement confirms proximity, but proximity is not the statutory test.

PEER v. United States Section, International Boundary and Water Commission and Grey address the need for a reasoned connection between the withheld kind of information and 7(E)'s protection. They do not require an agency to reveal the hidden mechanism. They do require more than an assertion that every neighboring sentence shares its sensitivity.

The panel can sustain the operational core while directing DOE to reconsider the periphery. A renewed decision may determine that a particular sentence would necessarily expose the relation between Condition-Aster and Sequence-Beryl. If so, DOE can explain that result without supplying their meaning. But a revision date or ordinary approval statement cannot remain withheld solely because it appears on the same source page. This narrower approach honors expertise and preserves statutory line drawing.

Foreseeable Harm Tracks the Protected Interest

Section 552(a)(8)(A) calls for a reasonable prediction that disclosure will harm an interest guarded by the invoked exemption, absent a prohibition on disclosure. The agency met that burden for the specific relationship whose exposure would reveal how the fictional decision structure is organized. Its account there moves from information, to function, to predicted circumvention.

The same chain is missing for much of the general text. DOE sometimes reasons that a sentence occurs within a protective record and therefore must carry the operational harm of the record's core. The controlled sample shows sentences that disclose neither Condition-Aster, Sequence-Beryl, Value-Cinder, nor the association among them. A generalized reference to context cannot substitute for a prediction directed to that information.

Vacatur on the unsupported categories would not require immediate disclosure. It would return the matter to DOE, which could articulate a valid consequence, apply a more precise deletion, or release material found harmless. The Court should use foreseeable harm as the link between statutory purpose and the particular withholding, not as a phrase automatically satisfied whenever a source document concerns law enforcement.

Adequacy of the Vaughn Account

The primary Vaughn materials identify the twelve records and state the disposition of each family. Their recurring descriptions, however, do not always reveal whether a disputed field is part of an operational relationship or ordinary administration. *Rein v. United States Patent and Trademark Office* requires an agency to provide a sufficiently detailed basis for the court to assess its claims rather than infer them from subject matter.

The controlled positions sharpen that problem without disclosing a hidden fact. Role-Dovetail, Safety-Echo, and Channel-Fable occupy different kinds of passages, yet DOE often assigns a uniform explanation to them. The label identifies a semantic type; it does not demonstrate that every instance has the same statutory function or expected consequence.

The supplemental release confirms that greater precision is feasible. RLS-OG-002 disclosed seventeen passages on eleven replacement pages without adding a record or source page. Exactly six pages gained two passages and five gained one. Those choices required examination below the family level. DOE should apply comparable discipline to the entries it still defends and provide an account that permits the Court to distinguish supported operational protection from an inherited category.

Functional Grouping Has Limits

An agency may organize related withholdings through representative functions, particularly where records share a genuine design. But a group is useful only if every included instance bears the material characteristic that supports the exemption. The controlled excerpts reveal variation that the public index does not consistently address.

Role-Dovetail may appear beside an operational assignment in one record and a publishing responsibility in another. Safety-Echo may denote an internal dependency or a general reference. Channel-Fable may occupy a protected coordination field or a sentence merely confirming that notice occurred. These labels say nothing about real persons or communications; their varied locations demonstrate why the function must be described rather than assumed.

On remand, DOE can retain categories while stating the document family, local purpose, exemption clause, and predicted harm for each category membership. Where a passage would expose the decision-tree relationship, 7(E) can continue to apply. Where an asserted safety connection supports 7(F), the agency may make that showing. Where neither explanation fits, the field should not remain withheld merely because its inert label resembles one elsewhere.

Seven(F) Demands an Individualized Danger Rationale

Exemption 7(F) protects law-enforcement information when production could reasonably be expected to endanger the life or physical safety of an individual. The relevant question is the agency-supported consequence of disclosure, not whether a document uses vocabulary broadly associated with safety.

DOE grouped Role-Dovetail, Safety-Echo, and Channel-Fable under recurring danger predictions. The controlled context shows that their functions differ. Some placements may plausibly bear on an individual's exposure; others concern offices, general references, or the fact of coordination. None of the inert words identifies a real person, channel, or safety measure, and no operational content accompanies them here.

EPIC v. Department of Homeland Security supports a nonidentifying explanation but does not make the individual-safety connection unnecessary. The thirty-nine fully withheld pages invoking 7(F) span several record families, yet DOE offered substantially categorical reasoning. Open Grid asks for renewed, narrower review, not a holding that 7(F) is unavailable for the collection. The agency should identify why the particular kind of information would create the statutory danger.

The Controlled Exemption 7(F) Placements Confirm Overbreadth

On this page, Role-Dovetail stands where the source assigned a fictional duty function, Safety-Echo where it referenced a fictional safety dependency, and Channel-Fable where it marked a fictional coordination field. Their positions permit comparison, but none reveals an identity, address, actual communication route, or usable protective action.

The surrounding prose demonstrates three different analytical possibilities. One role placement sits within an operational passage; another is part of administrative ownership. One safety reference bears on a described dependency; another labels a general governance section. A channel placement can mark sequencing context without identifying any person. Treating every occurrence as proof of expected physical danger erases those differences.

DOE may be able to justify selected instances on remand through a sufficiently concrete declaration. It may also conclude that 7(E) independently protects a relationship even when 7(F) does not. What it cannot do is rely on the controlled label itself as the missing danger analysis. The Court should vacate the categorical 7(F) ruling, preserve the 7(E) affirmance, and allow DOE to reassess each remaining safety claim under the proper standard.

Segregable Text Must Be Released

FOIA's segregability sentence requires disclosure of any reasonably separable nonexempt portion after exempt matter is removed. The duty applies even where a source page contains an unquestionably protected operational relationship. It asks whether other text can be understood without conveying that relationship or another exempt fact.

The controlled samples show sentences that remain coherent after Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable are withheld. Titles, approval notations, edition history, neutral headings, and general explanatory text do not necessarily disclose what any label means. DOE's earlier blanket treatment failed to demonstrate otherwise at the needed level.

RLS-OG-002 reinforces that conclusion. Seventeen passages were restored on eleven replacement pages, distributed as two passages on each of six pages and one on each of five. The release preserved the twelve records and 200 source pages and did not expose an operational value. The district court should have reconciled those facts with its acceptance of conclusory inseparability assertions. Remand should require a fresh, recorded review of every retained deletion.

The Supplemental Review Was Helpful but Incomplete

Open Grid does not treat DOE's correction as evidence of misconduct. The supplemental production reflects meaningful reconsideration and narrows the dispute. Its significance lies in what it proves about the feasibility of passage-level judgment, not in an accusation about agency motive.

The eleven replacement pages demonstrate that text initially grouped with protected matter could later be separated without changing the record universe. Six pages yielded two passages each and five yielded a single passage. No new responsive item was found; no family total moved. The agency simply drew more exact boundaries within material it already possessed.

That development prevents reliance on an unreconciled assertion that all remaining text was examined and found inseparable. DOE may ultimately sustain many current deletions, but it must show the work at a level that permits review. A remand can direct renewed segregability analysis while preserving every supported 7(E) relationship. It can also permit DOE to coordinate any revised 7(F) determination so that one statutory reassessment does not inadvertently reveal information independently protected by another.

District-Court Sealing Was Too Broad

The lower court restricted extensive filings because they discussed agency withholdings, without making sufficiently particular findings for each judicial record. *Company Doe v. Public Citizen* requires more: identification of the access interest, consideration of alternatives, and reasons proportionate to the specific material withheld from public view.

This controlled brief illustrates a less restrictive option. Its public counterpart presents the complete legal argument and substitutes category notices at the relevant positions. The present copy supplies only inert labels needed for comparison. It contains no genuine cyber content. The four controlled appellate submissions are individually identified, matched to public versions, and subject to interim review rather than indefinite closure.

Open Grid accepts that arrangement while this Court decides the appeal. It nevertheless seeks vacatur of the district order, which did not distinguish among materials or explain why narrower redaction was insufficient. Remand should require new findings before any lower-court restriction continues. Sustaining an agency withholding under 7(E) does not itself answer whether an entire judicial document, including public legal reasoning, may remain unavailable.

Instructions for Remand

A precise mandate can protect the supported operational matter and correct the remaining errors. First, affirm 7(E) as applied to nonpublic trigger relationships, response ordering, escalation structure, and implementation detail inside the operational decision trees. The Court need not describe the meanings assigned to Condition-Aster, Sequence-Beryl, or Value-Cinder to state that conclusion.

Second, vacate the category-wide 7(F) disposition and direct DOE to connect each retained safety withholding to an expected danger to an individual. Third, vacate the segregability determination and require renewed review informed by the seventeen supplemental passages. Fourth, vacate the broad district-court sealing order and require document-specific findings with consideration of redaction and public counterparts.

These directions do not compel disclosure of information protected by the affirmed 7(E) ruling. They allow DOE to support a narrower 7(F) claim and permit the district court to impose a justified, tailored access restriction. They also preserve the difference between agency disclosure law and access to judicial records, ensuring that one conclusion does not automatically resolve the other.

Relief Requested

The parties' dispute can be resolved without exposing the content represented by any inert label. The controlled placements establish context for adjudication, not instructions for conduct. They refer to no real system, person, event, address, or protective measure and cannot be translated into an operational sequence.

Open Grid respectfully asks the Court to affirm only the 7(E) treatment of supported operational decision-tree relationships. It asks the Court to vacate the categorical 7(F) ruling, the segregability ruling, and the district court's overbroad restriction of judicial records, and to remand those subjects for proceedings consistent with the governing statutes and access law. No part of that relief should override the limited 7(E) protection affirmed by the Court.

Tamsin Roe and Leo Marr certify that this controlled filing is paired page-for-page with a public redacted brief, uses only the six authorized inert labels, and contains no authentic operational detail. Service occurred on Corin Pell through the synthetic docket on March 13, 2026. Eligibility to view this copy remains subject to the document-specific, revocable session boundary described in the public motion and certificate.